

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: July 2, 2024 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 10	21CV380866	Debt Management Partners, LLC v. Angela Santiago	Claim of exemption: the claim is DENIED, as the judgment debtor has not shown the application of any statutory exemption, and her proposed amount to be withheld per monthly pay period of \$50 is unreasonable, given her income and expenses. At that rate, it will take nearly 10 years to pay off the judgment. Although it appears that the judgment debtor has substantial loans from a number of other banks, the debt at issue here has priority over those other debts.
LINE 11	21CV389929	Tianqing Li v. Phillip Mummah	Motion for leave to file a second amended complaint: notice is not proper, as the moving papers listed the wrong hearing date—July 22 instead of July 2—and the court has received no response to the motion. July 22 is not even a correct law-and-motion calendar date. The court takes this matter OFF CALENDAR, as the motion must be renoticed.
LINE 12	23CV417806	Alberto L. Correa et al. v. Ford Motor Company et al.	OFF CALENDAR

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Calendar Lines 1-2

Case Name: *Christian Humanitarian Aid, Inc. v. AM Star Construction, Inc. et al.*

Case No.: 22CV396170

I. BACKGROUND

This case involves a dispute over an architectural services contract and related agreements entered into by plaintiff Christian Humanitarian Aid (“CHA”) and defendants AM Star Construction, Inc. (“AMS”), Michael Achkar (“Achkar,” the owner of AMS), and Shultz & Associates (the architect for the project). CHA filed the original complaint in this matter on March 23, 2022. It filed the operative First Amended Complaint (“FAC”), adding defendant Link Corporation (“Link”), on March 15, 2023. The FAC states claims for: (1) Fraud in the Inducement (against AMS, Achkar, and various Does); (2) Fraud and Deceit (against AMS, Achkar, and various Does); (3) Breach of Contract (against AMS and various Does); (4) Breach of the Implied Covenant of Good Faith and Fair Dealing (against AMS and various Does); (5) Professional Negligence (against Shultz & Associates); (6) Breach of Contract (against Shultz & Associates); (7) Breach of Contract (against Link); (8) Negligence (against Link); and (9) Declaratory Relief (against AMS and various Does, seeking a declaration as to the validity of a mechanic’s lien).

Shultz & Associates filed a cross-complaint on May 25, 2023, a first amended cross-complaint on September 27, 2023, and a second amended cross-complaint on April 8, 2024.

AMS and Achkar filed a verified cross-complaint on July 25, 2023. This cross-complaint stated eleven causes of action for: (1) Breach of Contract (against CHA and cross-defendants Archangel Michael and Saint Mercurius Coptic Orthodox Church (the “Church”), St. Michael Preschool and Infant Care (the “Preschool”), and various Roes); (2) Breach of the Implied Covenant of Good Faith and Fair Dealing (against the same parties); (3) Foreclosure of Mechanic’s Lien (against CHA and various Roes); (4) Fraud and Deceit (false promise without intent to perform) (against CHA, the Church, the Preschool, and various Roes); (5) Fraud and Deceit (intentional misrepresentation) (against CHA, the Church, the Preschool, cross-defendant Bishoy William, and various Roes); (6) Equitable Indemnity (against Shultz & Associates and various Roes); (7) Contribution (against Shultz & Associates and various Roes); (8) Assault and Battery (against CHA, the Church, the Preschool, Bishoy William, and various Roes); (9) Assault and Battery (against CHA, the Church, the Preschool, Bishoy William, cross-defendant Mary William, and various Roes); (10) Intentional Infliction of Emotional Distress (against CHA, the Church, the Preschool, Bishoy William, and various Roes, based on the eighth cause of action); and (11) Intentional Infliction of Emotional Distress (against CHA, the Church, the Preschool, Bishoy William, Mary William, and various Roes, based on the ninth cause of action). The last four causes of action (Nos. 8-11) were alleged on behalf of plaintiff Achkar alone. Attached to the cross-complaint as Exhibit A was a copy of the mechanics lien asserted by AMS.

CHA, the Church, the Preschool, Bishoy William, and Mary William brought a demurrer to the first, second, fourth, fifth, eighth, ninth, tenth, and eleventh causes of action in the AMS/Achkar cross-complaint, as well as a motion to strike portions of that pleading. On December 7, 2023, the court sustained the Church and the Preschool’s demurrer to the first, second, fourth, fifth, eighth, ninth, tenth, and eleventh causes of action; sustained CHA’s demurrer to the second, fourth, fifth, tenth, and eleventh causes of action; sustained Bishoy